

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Magdalena Azmitia	Team: Squad #03	CCRB Case #: 201906036	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/09/2019 6:54 PM	Location of Incident: Northeast corner of 5th Avenue and West 130th Street; 32nd Precinct stationhouse	18 Mo. SOL 8/26/2021	Precinct: 32
Date/Time CV Reported Wed, 07/10/2019 2:51 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 07/10/2019 2:51 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Owens	24634	962653	032 PCT
2. DTS Christopher Rodrigo	07729	929060	032 PCT
3. An officer			
4. LT Javad Valad	00000	937665	QNS CT
5. POM Michael Feliz	14674	966050	032 PCT
6. CPT Neil Zuber	00000	931483	020 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Ellen Usher	12605	902520	032 PCT
2. POM Kendo Kinsey	12092	938774	032 PCT
3. POM Cesar Alvarez	06175	946741	032 PCT
4. POF Suegi Han	03145	950556	032 PCT
5. POM Michael Boyce	09681	953698	032 PCT
6. POM Daryn Dellilo	18995	958486	032 DET
7. POM Jimmy Gutierrez	27000	957651	032 PCT
8. POF Milagros Torres	13241	935864	032 PCT
9. POM Eric Stovall	06916	947520	032 PCT
10. POM Christophe Gordon	14137	954884	032 PCT
11. POM David Schrammel	25621	946552	032 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . DTS Christopher Rodrigo	Discourtesy: At 5th Avenue and West 130th Street in Manhattan, Detective Christopher Rodrigo spoke discourteously to § 87(2)(b)	A . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
B . LT Javad Valad	Discourtesy: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad spoke discourteously to § 87(2)(b)	B . Unfounded
C . LT Javad Valad	Force: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad used physical force against § 87(2)(b)	C . Exonerated
D . LT Javad Valad	Force: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad used physical force against § 87(2)(b)	D . Exonerated
E . POM Michael Feliz	Discourtesy: At 5th Avenue and West 130th Street in Manhattan, Police Officer Michael Feliz spoke discourteously to § 87(2)(b)	E . Exonerated
F . POM Michael Feliz	Force: At 5th Avenue and West 130th Street in Manhattan, Police Officer Michael Feliz used physical force against § 87(2)(b)	F . Exonerated
G . POM Robert Owens	Force: At 5th Avenue and West 130th Street in Manhattan, Police Officer Robert Owens used physical force against § 87(2)(b)	G . Exonerated
H . POM Robert Owens	Force: At 5th Avenue and West 130th Street in Manhattan, Police Officer Robert Owens used physical force against § 87(2)(b)	H . Exonerated
I . DTS Christopher Rodrigo	Force: At 5th Avenue and West 130th Street in Manhattan, Detective Christopher Rodrigo used physical force against § 87(2)(b)	I . Exonerated
J . POM Michael Feliz	Force: At 5th Avenue and West 130th Street in Manhattan, Police Officer Michael Feliz used physical force against § 87(2)(b)	J . Exonerated
K . POM Michael Feliz	Force: At 5th Avenue and West 130th Street in Manhattan, Police Officer Michael Feliz used physical force against § 87(2)(b)	K . Exonerated
L . LT Javad Valad	Force: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad used physical force against § 87(2)(b)	L . Exonerated
M . LT Javad Valad	Force: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad used physical force against § 87(2)(b)	M . Exonerated
N . LT Javad Valad	Abuse: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad threatened § 87(2)(b) with the use of force.	N . Exonerated
O . LT Javad Valad	Abuse: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad threatened § 87(2)(b) with the use of force.	O . Exonerated
P . LT Javad Valad	Abuse: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad threatened individuals with the use of force.	P . Exonerated
Q . CPT Neil Zuber	Force: At 5th Avenue and West 130th Street in Manhattan, Captain Neil Zuber used physical force against § 87(2)(b)	Q . Exonerated
R . CPT Neil Zuber	Abuse: At 5th Avenue and West 130th Street in Manhattan, Captain Neil Zuber arrested § 87(2)(b)	R . Substantiated
S . An officer	Discourtesy: At the 32nd Precinct stationhouse, an officer acted discourteously toward § 87(2)(b)	S . Unfounded

Officer(s)	Allegation	Inv. Div. Recommendation
T . An officer	Discourtesy: At the 32nd Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)	T . Unfounded
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On July 10, 2019, reporting non-witness § 87(2)(b) filed this complaint via the CCRB online complaint form on behalf of § 87(2)(b) hereafter referred to as § 87(2)(b) his sister § 87(2)(b) his father § 87(2)(b) § 87(2)(b) and other unidentified individuals. § 87(2)(g)

On July 9, 2019, at approximately 6:54 PM, on 5th Avenue between 129th and 130th Street in Manhattan, Lt. Javad Valad and Det. Christopher Rodrigo, who were both assigned to the 32nd Precinct at the time, stopped § 87(2)(b) vehicle, in which § 87(2)(b) and his friend § 87(2)(b) were occupants. Lt. Valad found that § 87(2)(b) vehicle was unregistered and uninsured and that § 87(2)(b) did not have a driver's license. While speaking to § 87(2)(b) Det. Rodrigo stated, "I'm not trying to be an asshole, but you should know better," (**Allegation A, Discourtesy: Substantiated**). § 87(2)(b) and § 87(2)(b) arrived on scene, as did PO Robert Owens and PO Michael Feliz of the 32nd Precinct, who stopped to assist after seeing Lt. Valad's unit while en route to another call. Lt. Valad allegedly said to § 87(2)(b) "Fuck it," and instructed PO Owens and PO Feliz to arrest § 87(2)(b) (**Allegation B, Discourtesy: Unfounded**). While interacting with § 87(2)(b) and § 87(2)(b) Lt. Valad pushed them both away from § 87(2)(b) vehicle and from Lt. Valad's person twice (**Allegations C and D, Force: Exonerated**). Just before officers began arresting him, § 87(2)(b) attempted to reach into his vehicle while PO Owens was attempting to remove it from the scene. PO Feliz told § 87(2)(b) to leave the area and said, "Get the fuck out of here," (**Allegation E, Discourtesy: Exonerated**). To effect § 87(2)(b) arrest, PO Feliz grabbed § 87(2)(b) arms (**Allegation F, Force: Exonerated**). § 87(2)(b) pulled away, and PO Owens took him to the ground (**Allegation G, Force: Exonerated**). On the ground, PO Owens punched § 87(2)(b) on the side of his head multiple times (**Allegation H, Force: Exonerated**). To assist PO Owens, Det. Rodrigo allegedly assisted in taking § 87(2)(b) to the ground, then grabbed § 87(2)(b) hand and laid his body weight on top of § 87(2)(b) legs (**Allegation I, Force: Exonerated**). PO Feliz then began to address bystanders, including § 87(2)(b) and § 87(2)(b) who repeatedly attempted to approach § 87(2)(b) as officers were trying to arrest him. PO Feliz pushed both § 87(2)(b) and § 87(2)(b) several times (**Allegations J and K, Force: Exonerated**). Lt. Valad also pushed § 87(2)(b) and § 87(2)(b) away from § 87(2)(b) and PO Owens (**Allegations L and M, Force: Exonerated**). Lt. Valad took out his taser and pointed it at both § 87(2)(b) and § 87(2)(b) (**Allegations N and O, Abuse of Authority: Exonerated**). During that time, at least one of the officers on scene called for additional units, and several additional officers responded to the location. Lt. Valad also pointed his taser at several bystanders (**Allegation P, Abuse of Authority: Exonerated**). After § 87(2)(b) was removed from the scene, Cpt. Neil Zuber, who was assigned to the 32nd Precinct at the time of the incident, had an altercation with § 87(2)(b) during which he took § 87(2)(b) to the ground (**Allegation Q, Force: Exonerated**). Cpt. Zuber eventually initiated § 87(2)(b) arrest (**Allegation R, Abuse of Authority: Substantiated**). At the 32nd Precinct stationhouse, § 87(2)(b) asked for a garbage can to spit into, and an unidentified officer allegedly threw a bottle at him and said, "I don't give a fuck where you spit," (**Allegations S and T, Discourtesy: Unfounded**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) was taken to § 87(2)(b) Hospital at 8:35 PM on the night of the incident, where he was treated for lacerations to his right ear and left forehead.

§ 87(2)(b) was arrested and charged with resisting arrest, obstruction of governmental administration, driving with suspended registration, driving without insurance, driving without a license, and failure to signal. § 87(2)(b) was arrested and charged with obstruction of governmental administration. § 87(2)(b) was also arrested, although the arrest was sealed, and the investigation

was unable to confirm his charges.

The investigation obtained several social media videos of the incident from § 87(2)(b) and news articles [BR 02, 11, 13, 14, 17, 18].

The investigation obtained relevant body-worn camera (BWC) video from the following officers: Lt. Valad, Det. Rodrigo, PO Feliz, PO Owens, PO David Schrammel, PO Christopher Gordon, PO Eric Stovall, PO Michael Boyce, PO Jimmy Gutierrez, and PO Daryn Dellilo. All of the officers were assigned to the 32nd Precinct at the time and remain so, with the exception of PO Dellilo, who has since been reassigned to the 32nd Precinct Detective Squad, and Lt. Valad.

The investigation obtained BWC video which took place after the incident and was deemed irrelevant from the following officers: PO Cesar Alvarez, PO Boyce, PO Suegi Han, PO Kendo Kinsey, Lt. Valad, and PO Ellen Usher [BR 40-48]. With the exception of Lt. Valad, all of these officers are assigned to the 32nd Precinct.

Lt. Valad has since been reassigned to Queens Court Section, and Cpt. Zuber has since been reassigned to the 20th Precinct.

IAB Group 54 conducted a separate investigation which addressed allegations of physical force by Det. Rodrigo and PO Owens against § 87(2)(b) which were both exonerated [BR 65]. Group 54 also investigated allegations of physical force by Lt. Valad against § 87(2)(b) and § 87(2)(b) which were also exonerated. Finally, Group 54 substantiated an allegation for failure to call EMS to the scene against PO Owens. The CCRB did not investigate any alleged failure to provide medical attention for § 87(2)(b) given that EMS ultimately responded to the 32nd Precinct stationhouse shortly after he arrived there and took him to § 87(2)(b) Hospital. PO Alvarez's BWC video showed that EMS did respond to the incident location, but the ambulance was rerouted to the 32nd Precinct stationhouse given that § 87(2)(b) had already been taken there (IA 120 at 17:15 minutes) [BR 21].

Findings and Recommendations

Allegation (A) Discourtesy: At 5th Avenue and West 130th Street in Manhattan, Detective Christopher Rodrigo spoke discourteously to § 87(2)(b)

It is undisputed that Det. Rodrigo told § 87(2)(b) "I'm not trying to be an asshole," at the beginning of the vehicle stop. Neither § 87(2)(b) nor § 87(2)(b) and § 87(2)(b) made this allegation. It is being pleaded based on the BWC footage.

§ 87(2)(b) testified that he and his friend § 87(2)(b) whose full name he did not know, were driving his father § 87(2)(b) vehicle when he observed Lt. Valad's marked vehicle following him for several blocks [BR 05]. § 87(2)(b) began parking the car on 5th Avenue between 130th Street and 131st Street in front of Courtney Callender Playground when Lt. Valad and Det. Rodrigo pulled up alongside him and initiated the stop for failing to signal while he was parking. Lt. Valad and Det. Rodrigo instructed § 87(2)(b) and § 87(2)(b) to step out of the vehicle, and both § 87(2)(b) and § 87(2)(b) complied.

The investigation was unable to identify § 87(2)(b) to obtain sworn testimony from him, as § 87(2)(b) did not know his full name and did not have contact information for him.

Lt. Valad testified that he and Det. Rodrigo stopped § 87(2)(b) for failing to signal while parking his vehicle at the location [BR 24]. Lt. Valad asked § 87(2)(b) if he was old enough to have a driver's license. § 87(2)(b) stated that he did not have a driver's license, and either he or § 87(2)(b) stated that § 87(2)(b) did not have a driver's license either. After § 87(2)(b) and § 87(2)(b) exited their vehicle, approximately 20-30 people gathered approximately three to five feet away and began

yelling at the officers. After conducting database searches for § 87(2)(b) and his vehicle, Lt. Valad found that the vehicle's insurance had lapsed, resulting in the registration being revoked. Det. Rodrigo's testimony regarding the onset of the stop was consistent with that of Lt. Valad with the exception that he did not recall how many individuals were in the crowd.

At the outset of Det. Rodrigo's BWC footage, approximately 10-15 people are standing near the entrance to the park (IA 158 from 0:00-0:55 seconds) [BR 21]. Throughout the video, the bystanders are heard making comments about the stop, but they remain in their places and do not approach § 87(2)(b) vehicle or the officers. Det. Rodrigo's BWC footage shows that while Lt. Valad runs a search of § 87(2)(b) name and vehicle, Det. Rodrigo, § 87(2)(b) and § 87(2)(b) are discussing the alleged traffic infraction § 87(2)(b) committed, and Det. Rodrigo states that § 87(2)(b) should have used his signals when parking the vehicle. Det. Rodrigo then tells § 87(2)(b) "I'm not being an asshole, but you should know better than to be driving without a licensed driver," (IA 158 at 4:55 minutes) [BR 21]. In the video, § 87(2)(b) is standing beside § 87(2)(b) and participating in the conversation. At the time the discourtesy is used, Lt. Valad is sitting in the passenger's seat of the police vehicle with the door open. Neither Det. Rodrigo nor Lt. Valad address the crowd at this time.

Det. Rodrigo initially testified that he did not recall using any profanity when speaking to § 87(2)(b). After viewing his BWC footage, Det. Rodrigo stated that he did not intend to be discourteous when he said, "I'm not being an asshole," [BR 30]. Det. Rodrigo was unable to provide any specific reason for the language that he used during the interaction.

NYPD Patrol Guide Procedure 200-02 notes that officers must respect the dignity of each individual and render services with courtesy and civility [BR 37].

NYPD Disciplinary case #2017-17276 notes that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent confrontation [BR 50].

NYPD Disciplinary case #2015-15012 notes that discourteous language may be used by officers in the context of dynamic situations in which the officer is attempting to gain control or compliance from civilians. However, in this case, subsequent discourteous language by the officer was found to serve no legitimate purpose except to belittle the civilian [BR 51].

Although a crowd was gathering at the location and was commenting on the stop, none of the bystanders were directly engaging with Det. Rodrigo or Lt. Valad or approached § 87(2)(b) vehicle at the time. Prior to the discourtesy, Det. Rodrigo was discussing traffic infractions and rules with § 87(2)(b) and § 87(2)(b) and neither he nor Lt. Valad issued any instructions to the crowd to move away or cease making comments. Both § 87(2)(b) and § 87(2)(b) were standing at the rear of the vehicle and the officers were not attempting to restrain them at that point. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Discourtesy: At 5th Avenue and West 130th Street in Manhattan, Lieutenant Javad Valad spoke discourteously to § 87(2)(b)

It is undisputed that Lt. Valad intended to remove § 87(2)(b) vehicle from the scene due to the lack of registration and insurance. It is also undisputed that § 87(2)(b) and § 87(2)(b) arrived on scene after § 87(2)(b) called them at their home.

§ 87(2)(b) testified that upon arrival on scene, he gave Lt. Valad his driver's license and stated that § 87(2)(b) was his son and that the car belonged to him [BR 52]. § 87(2)(b) testified

that after she and her father arrived on scene, they both spoke to Lt. Valad [BR 06]. A crowd had begun to gather in front of the playground, and Lt. Valad told § 87(2)(b) that these individuals were making the situation worse for him by recording. § 87(2)(b) stated that he was not recording and could not control what the other people were doing. Lt. Valad then said, “Fuck it,” and told § 87(2)(b) that they were going to tow the car and that he would have to pick it up from the tow company. Neither § 87(2)(b) nor § 87(2)(b) made this allegation or corroborated this testimony. § 87(2)(b) did not note this allegation in her statement to IAB [BR 65].

Lt. Valad denied saying, “Fuck it,” or using any profanity towards § 87(2)(b) throughout their interaction [BR 24].

Lt. Valad’s BWC footage shows that he and Det. Rodrigo discussed taking § 87(2)(b) vehicle prior to § 87(2)(b) and § 87(2)(b) arrival (IA 158, at 6:30 minutes) [BR21]. Lt. Valad’s BWC footage also shows that he explained the reasoning for taking the vehicle several times to both § 87(2)(b) and § 87(2)(b) and does not say, “Fuck it,” at any point during these explanations (IA 158, from 10:45-20:30 minutes).

§ 87(2)(g) Lt. Valad’s BWC footage shows he did not use the alleged profanity while speaking to § 87(2)(b) when explaining that his vehicle will be towed, § 87(2)(g). It is therefore recommended that Allegation B be closed as unfounded.

Allegation (C) Force: At 5th Avenue and West 130th Street in Manhattan. Lieutenant Javad Valad used physical force against § 87(2)(b)

Allegation (D) Force: At 5th Avenue and West 130th Street in Manhattan. Lieutenant Javad Valad used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) opened the passenger’s side door of § 87(2)(b) vehicle and attempted to remove his phone charger from the vehicle, and that § 87(2)(b) approached Lt. Valad while he interacted with § 87(2)(b). It is undisputed that Lt. Valad pushed § 87(2)(b) and § 87(2)(b) prior to § 87(2)(b) arrest.

§ 87(2)(b) testified that after Lt. Valad stated that he was going to take § 87(2)(b) car, she walked to the front of the car to take the portable charger out of the front seat so that she could give it to § 87(2)(b) which would have allowed him to charge his phone, so he could obtain the registration information [BR 06]. No one was in the car at the time. When she did this, Lt. Valad ran from the left side of the car to the right where § 87(2)(b) was, slammed the door, asked why she was in the car, and used both of his hands to push her on her shoulder. § 87(2)(b) approached them and asked Lt. Valad why he was pushing § 87(2)(b). Lt. Valad then also pushed § 87(2)(b). Throughout these interactions, approximately 30 people from the neighborhood were standing along the outside of Courtney Callender Playground. § 87(2)(b) CCRB testimony was consistent with her statement to IAB [BR 65].

§ 87(2)(b) testified that upon arrival on scene, he gave Lt. Valad his driver’s license and stated that § 87(2)(b) was his son and that the car belonged to him [BR 52]. Lt. Valad briefly walked to the other end of the car, and when § 87(2)(b) asked to have his driver’s license back, Lt. Valad approached him and, without making any statements, pushed him on the shoulders. Lt. Valad did not ask § 87(2)(b) to move back before pushing him. § 87(2)(b) CCRB testimony was consistent with his statement to IAB [BR 65].

§ 87(2)(b) testified that he did not witness officers push § 87(2)(b) or § 87(2)(b) and that he learned about these allegations after the fact [BR 05].

§ 87(2)(b) noted that his friend § 87(2)(b) was a witness to the incident. § 87(2)(b) declined to provide his last name or any other contact information aside from the phone number that § 87(2)(b) provided. § 87(2)(b) provided a brief phone statement in which he stated that he saw Lt. Valad

push § 87(2)(b) once. § 87(2)(b) also saw Lt. Valad push § 87(2)(b) an unspecified number of times as she tried to get a charger from § 87(2)(b) car [BR 53]. § 87(2)(b) was ultimately uncooperative with the investigation [BR 54].

Lt. Valad's testimony was largely consistent with that of § 87(2)(b) although he added that PO Owens had entered § 87(2)(b) vehicle in preparation to remove it from the scene and take it back to the 32nd Precinct stationhouse [BR 24]. Lt. Valad noted that he was keeping § 87(2)(b) away from the vehicle as she was attempting to obstruct governmental administration by interfering with § 87(2)(b) car during the stop. Lt. Valad also added that he pushed § 87(2)(b) only after she tried to get into the vehicle again, and Lt. Valad pushed her on her torso twice to stop her from doing so. § 87(2)(b) approached them after Lt. Valad pushed § 87(2)(b) and Lt. Valad pushed him as well. Lt. Valad noted that both § 87(2)(b) and § 87(2)(b) were less than an arm's length away from him when he pushed them both. Lt. Valad's CCRB testimony was consistent with his statement to IAB and with his memo book entry [BR 25, 65]. Lt. Valad stated that he did not prepare a TRI regarding his interactions with § 87(2)(b) and § 87(2)(b) as he consulted with the NYPD Legal Department on an unknown date and was informed that he did not need to do so.

Lt. Valad's BWC footage shows him quickly approaching the front of the vehicle and going to the passenger's side, where § 87(2)(b) is standing at the front passenger's side door (IA 158, at 20:30 minutes) [BR 21]. Lt. Valad tells § 87(2)(b) to back up several times. § 87(2)(b) argues that she opened the car door to get § 87(2)(b) belongings out of the car. Lt. Valad closes the door, after which § 87(2)(b) approaches and stands in front of § 87(2)(b) approaches Lt. Valad again, and Lt. Valad tells her to back up before putting one hand on § 87(2)(b) chest (IA 158, at 20:55 minutes). It is unclear whether he exerts any pressure or pushes § 87(2)(b) back at all. Lt. Valad then does the same to § 87(2)(b) while telling him to back up (20:59 minutes). § 87(2)(b) then approaches the vehicle again, although it is unclear whether she makes any attempt to open it, and Lt. Valad appears to put his hand on her stomach (21:15 minutes). It is again unclear whether he is exerting any pressure, but § 87(2)(b) says, "Why are you touching me? Don't touch me." Lt. Valad instructs other officers to arrest § 87(2)(b) then places one hand on § 87(2)(b) chest and pushes him back, with § 87(2)(b) appearing to stumble backwards (21:23 minutes). § 87(2)(b) begins to approach Lt. Valad while yelling at him. § 87(2)(b) steps in front of her, consequently approaching Lt. Valad, and Lt. Valad pushes § 87(2)(b) back, again causing him to stumble backwards (21:27 minutes). Lt. Valad continues to say, "Back up," throughout the interaction.

Excerpts of social media videos of the incident were included in a video posted to § 87(2)(b) website. In the video, Lt. Valad is standing at the passenger's side of the vehicle with § 87(2)(b) and § 87(2)(b). Several bystanders are seen approximately three feet away from Lt. Valad at the time. § 87(2)(b) is not visible in the video at the time. Lt. Valad pushes § 87(2)(b) and § 87(2)(b) away from him after they approach him (IA 14, at 1:00 minute) [BR 02]. Immediately thereafter, § 87(2)(b) approaches again and appears to swing her hand at Lt. Valad, who pushes her again. § 87(2)(b) approaches Lt. Valad, who pushes him again.

Video of the incident was also posted to Instagram by user § 87(2)(b) [BR 17]. In the video, Lt. Valad moves from the rear of the vehicle to the front passenger's side door, where § 87(2)(b) is standing in front of the door, which is ajar (IA 97, at 5 seconds). At least seven people are seen observing on the sidewalk, two of whom approach § 87(2)(b) while she is interacting with Lt. Valad. Lt. Valad tells § 87(2)(b) to "back up" and closes the car door. § 87(2)(b) approaches the car door again (IA 97, at 26 seconds). Lt. Valad appears to lightly push § 87(2)(b) away from the car after she approaches him. Later in the same video, § 87(2)(b) approaches Lt. Valad while yelling (IA 97, at 55 seconds). Lt. Valad appears to push § 87(2)(b) back just as the video ends. Another Instagram video posted by the same user resumes the same video [BR 18]. § 87(2)(b) appears to approach Lt. Valad while § 87(2)(b) is seen standing directly in front of Lt. Valad (IA 98, at

0:00 seconds). Lt. Valad pushes § 87(2)(b) and § 87(2)(b) away from him (IA 98). Immediately thereafter, several bystanders are seen on the sidewalk observing and they are heard yelling at officers.

§ 87(2)(b) was arrested during this incident for obstruction of government administration [BR 15]. The narrative in her arrest report notes that § 87(2)(b) tried to remove items from a vehicle at an arrest location and resisted lawful orders while interfering with the arresting officer's lawful duties. The arrest report states that no physical force was used during § 87(2)(b) arrest. The arresting officer is PO Owens. § 87(2)(b) is listed on her arrest report as being 5'8" tall and weighing 160 pounds at the time of the incident. § 87(2)(b) was 24 years old on the incident date.

As per § 87(2)(b) self-reported pedigree information at the time of his interview, he was 61 years old at the time of the incident, 6'2" tall, and weighed 220 pounds [BR 52].

As per Lt. Valad's self-reported pedigree information at the time of his interview, Lt. Valad was 36 years old at the time of the incident, is 6'3" tall, and weighs 280 pounds [BR 25].

Obstruction of government administration is a class A misdemeanor according to New York State Penal Law §195.05 [BR 39].

According to NYPD Patrol Guide Procedure 221-02, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances [BR 35]. According to Patrol Guide Procedure 221-01, the following factors should be taken into consideration when determining whether the use of force is reasonable: nature and severity of the crime; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, MOS, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to MOS; size, age, and condition of the subject in comparison to MOS; subject's violent history, if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant or narcotic affecting pain tolerance or increasing the likelihood of violence [BR 35]. Patrol Guide Procedure 221-03 regarding reporting of use of force and injuries notes that physical force such as hand strikes or forcible takedowns are a level one use of force [BR 36].

IAB exonerated Lt. Valad's use of force against § 87(2)(b) and § 87(2)(b) stating that both had refused orders to get back and were interfering with § 87(2)(b) arrest, making Lt. Valad's actions "neither unnecessary or excessive," [BR 65].

Although obstruction of government administration is a misdemeanor offense, § 87(2)(b) failed to heed multiple orders from Lt. Valad to back away from § 87(2)(b) vehicle. § 87(2)(b) was not arrested but ultimately came within the same distance of § 87(2)(b) vehicle and Lt. Valad's person as § 87(2)(b) did despite several instructions to move back. Lt. Valad was addressing both § 87(2)(b) and § 87(2)(b) by himself simultaneously. Lt. Valad is 12 years older, seven inches taller, 120 pounds heavier than § 87(2)(b). Lt. Valad is 25 years younger, one inch taller, and 60 pounds heavier than § 87(2)(b). Lt. Valad did not testify to any known violent history regarding § 87(2)(b) or § 87(2)(b). As noted in § 87(2)(b) testimony and as seen in Lt. Valad's BWC footage, a large crowd of bystanders had gathered at the scene and drastically outnumbered the officers on scene at the time. Lt. Valad did not testify to any indicators that either § 87(2)(b) or § 87(2)(b) appeared to be under the influence of any stimulants or narcotics.

§ 87(2)(g)

they were not complying with lawful orders to

move away from § 87(2)(b) vehicle § 87(2)(g) It is therefore recommended that Allegations C and D be closed as exonerated.

Allegation (E) Discourtesy: At 5th Avenue and West 130th Street in Manhattan, Police Officer Michael Feliz spoke discourteously to § 87(2)(b)

Allegation (F) Force: At 5th Avenue and West 130th Street in Manhattan, Police Officer Michael Feliz used physical force against § 87(2)(b)

Allegation (G) Force: At 5th Avenue and West 130th Street in Manhattan, Police Officer Robert Owens used physical force against § 87(2)(b)

Allegation (H) Force: At 5th Avenue and West 130th Street in Manhattan, Police Officer Robert Owens used physical force against § 87(2)(b)

Allegation (I) Force: At 5th Avenue and West 130th Street in Manhattan, Detective Christopher Rodrigo used physical force against § 87(2)(b)

It is undisputed that PO Owens and PO Feliz arrived on scene while Lt. Valad and Det. Rodrigo were in the process of investigating § 87(2)(b) and his vehicle and stood by in case Lt. Valad and Det. Rodrigo needed assistance. PO Feliz also assisted Det. Rodrigo in preparing summonses while Lt. Valad spoke to § 87(2)(b) family and PO Owens began to remove § 87(2)(b) vehicle from the scene on Lt. Valad's instruction. Simultaneously while Lt. Valad was addressing § 87(2)(b) and § 87(2)(b) on the passenger's side of the vehicle, PO Feliz and PO Owens were interacting with § 87(2)(b) on the driver's side of the vehicle. PO Feliz told § 87(2)(b) to "get the fuck out of here" before he and PO Owens initiated § 87(2)(b) arrest. It is undisputed that PO Feliz grabbed § 87(2)(b) arms while attempting to arrest him. It is undisputed that PO Owens took § 87(2)(b) to the ground and struck him in the face with a closed fist at least two times, and that Det. Rodrigo assisted PO Owens in gaining control of § 87(2)(b). Although none of the complainants or victims testified to Allegation E, the investigation is pleading it after it was captured on BWC.

§ 87(2)(b) testified that after PO Owens had gotten into his vehicle to take it to the stationhouse, § 87(2)(b) approached him to ask where the vehicle was going [BR 05]. When § 87(2)(b) tried to return to the rear of the vehicle, PO Feliz blocked his path. PO Feliz pushed § 87(2)(b) on his chest and § 87(2)(b) put his hands up. PO Owens grabbed § 87(2)(b) back and pushed him, and § 87(2)(b) lost his balance and fell to the ground, landing on his back. One of the officers told § 87(2)(b) to stop resisting and flipped him onto his front. PO Owens pushed § 87(2)(b) face onto the ground and punched him more than five times in his right ear and on the back of his head. Several officers also tried to move § 87(2)(b) arms and put them over his head. § 87(2)(b) noted that he did not have a clear memory of this part of the incident.

§ 87(2)(b) statement to IAB was largely consistent with his CCRB testimony with the following exceptions. § 87(2)(b) reported to IAB that he had reached into the vehicle to retrieve his identification while PO Owens was in the vehicle [BR 65]. An unidentified officer then pushed § 87(2)(b) from behind, after which he began walking to the rear of the vehicle with his hands up and officers took him to the ground.

The FDNY Ambulance Call Report (ACR) prepared for § 87(2)(b) ambulance response notes that § 87(2)(b) had multiple lacerations and bruising on the left side of his face as well as a laceration with bleeding in his right earlobe area. The ACR does not include a statement from § 87(2)(b).

§ 87(2)(b) medical records from § 87(2)(b) Hospital note that he sustained superficial lacerations to his right ear and left forehead § 87(2)(a) – PHL 18(6). The records note that § 87(2)(b).

reported that he was assaulted by police and punched multiple times in the head.

§ 87(2)(b) testimony was partly consistent with that of § 87(2)(b) [BR 06]. After § 87(2)(b) had the interaction with Lt. Valad, she returned to the rear of § 87(2)(b) vehicle. Officers told § 87(2)(b) to put his hands up and move to the back of his car, which he did. While § 87(2)(b) was putting his hands up and moving toward the back of the car, he bumped into PO Owens and another officer, whom § 87(2)(b) could not describe. PO Owens and the other officer took § 87(2)(b) to the ground, with him landing facedown, and began to punch his face. § 87(2)(b) also stated that her memory of this part of the incident was unclear and that her view was partially obstructed by § 87(2)(b) vehicle. § 87(2)(b) CCRB testimony was consistent with her statement to IAB [BR 65].

§ 87(2)(b) testified that § 87(2)(b) was already in handcuffs when officers took him to the ground, but § 87(2)(b) did not see who handcuffed him or how the officers took him to the ground [BR 52]. One of the officers punched § 87(2)(b) on the right side of his head while he was handcuffed and on the ground.

PO Feliz testified that he had been in his own vehicle, assisting Det. Rodrigo with preparing summonses for several minutes. Before he got out of his vehicle again, he saw § 87(2)(b) had approached the driver's side of his own vehicle and reach into the car via the driver's window while PO Owens was still inside [BR 28]. PO Feliz noted that PO Owens was in the vehicle in preparation to take it to the 32nd Precinct stationhouse. PO Owens exited the vehicle, and both he and PO Feliz instructed § 87(2)(b) to get back and to leave the area. § 87(2)(b) did not comply with these instructions and proceeded to move closer to PO Feliz and PO Owens, ultimately coming within 10 inches of PO Owens' person. PO Feliz testified that he told § 87(2)(b) "Get the fuck back," in order to gain compliance from him, but § 87(2)(b) did not comply. PO Feliz pushed § 87(2)(b) back with both of his hands on § 87(2)(b) chest and shoulder area. Lt. Valad instructed PO Feliz and PO Owens to arrest § 87(2)(b). PO Feliz reached for § 87(2)(b) hands to handcuff him, and § 87(2)(b) moved his hands away from the officers and attempted to move away from them. § 87(2)(b) hand briefly made contact with PO Feliz's abdomen. PO Owens attempted to grab § 87(2)(b) arm, and § 87(2)(b) continued movements caused him and PO Owens to lose balance, resulting in both of them falling to the ground. PO Feliz immediately turned his attention to the crowd of bystanders, while Det. Rodrigo stepped in to assist PO Owens. PO Feliz did not see specifically what actions PO Owens and § 87(2)(b) took once they were on the ground. PO Feliz's CCRB testimony was consistent with his statement to IAB and with his memo book entry [BR 31, 65].

PO Feliz's BWC footage is largely consistent with his testimony. The footage shows that when PO Feliz approaches, § 87(2)(b) is standing near the front driver's side door of his vehicle (IA 158, at 13:20 minutes) [BR 21]. PO Owens exits the driver's seat of § 87(2)(b) vehicle. Both PO Feliz and PO Owens tell § 87(2)(b) to "back up." Both § 87(2)(b) and PO Owens are heard saying, "Don't touch me," to each other. PO Feliz says to § 87(2)(b) "You don't want it, bro. Get the fuck out of here. Get the fuck out of here bro," (IA 158, at 13:35 minutes) [BR 21]. PO Feliz tells § 87(2)(b) to back up, and § 87(2)(b) complains about PO Feliz touching him. Shortly thereafter, PO Feliz appears grabs § 87(2)(b) right arm from behind him while PO Owens exits the vehicle (13:50 minutes). PO Feliz tells § 87(2)(b) to put his hands behind his back. § 87(2)(b) does not immediately comply, although it is unclear whether he actively resists. PO Owens takes hold of § 87(2)(b) right arm and takes him to the ground, with both PO Owens and § 87(2)(b) falling (13:57 minutes). PO Owens is seen placing his left arm around § 87(2)(b) back and shoulders. PO Feliz walks away from § 87(2)(b) and PO Owens and interacts with bystanders for several minutes.

PO Feliz prepared a TRI regarding his use of force which noted that he grappled with § 87(2)(b) in order to overcome resistance and aggression [BR 15].

PO Owens testified that he was preparing to bring the vehicle back to the stationhouse when § 87(2)(b) put his hand inside the vehicle in the driver's side window multiple times and appeared to be trying to remove unknown items from the driver's side door [BR 23]. PO Owens told § 87(2)(b) to stop twice and to step away from the vehicle. When PO Owens told § 87(2)(b) to stop a third time, he stepped out of the vehicle. § 87(2)(b) was standing in front of the car and preventing it from being moved out of its parking space. PO Owens attempted to place § 87(2)(b) under arrest for obstructing government administration because he was not following PO Owens' instructions. PO Owens struggled to get § 87(2)(b) hands behind his back. PO Owens did not recall where he grabbed § 87(2)(b) but believed he tried to grab § 87(2)(b) hand, and § 87(2)(b) pulled his hand away from PO Owens.

PO Owens grabbed § 87(2)(b) again by hugging him from behind while § 87(2)(b) squatted. § 87(2)(b) lightly slapped PO Owens' hands away, and both PO Owens and § 87(2)(b) fell to the ground on the street, where they continued to grapple. PO Owens did not recall how he and § 87(2)(b) got to the ground but noted that § 87(2)(b) was on his front. Det. Rodrigo assisted PO Owens by putting his body weight on § 87(2)(b) legs to keep his legs down. PO Owens told § 87(2)(b) multiple times to put his hands behind his back, and § 87(2)(b) did not comply. PO Owens also noted that the crowd was throwing objects at officers, including a mountain bicycle. § 87(2)(b) put his hands in front of his body to prevent PO Owens from putting his hands behind his back. PO Owens struck § 87(2)(b) in the head on the left side of his face approximately three times until § 87(2)(b) freed his hands from his front and put them behind his back. PO Owens deployed hand strikes because he felt it was the least amount of force he could use to gain compliance from § 87(2)(b) at the time. PO Owens was able to handcuff § 87(2)(b) and stopped striking him. When PO Owens pulled away from § 87(2)(b) he noticed a small pool of blood on the ground by § 87(2)(b) face. PO Owens later learned that § 87(2)(b) had lacerations somewhere on his face, for which he got stitches. PO Owens' CCRB testimony was consistent with his statement to IAB and his memo book entry [BR 64, 65].

PO Owens' statement regarding someone throwing a bicycle at officers is corroborated in the video attached to the § 87(2)(b).

PO Owens' BWC video shows him entering the driver's seat of § 87(2)(b) vehicle after Lt. Valad instructs him to remove the vehicle from the scene (IA 158, at 13:08 minutes) [BR 21]. PO Owens' left hand is seen grabbing § 87(2)(b) hand. It is unclear when § 87(2)(b) put his hand in the vehicle. § 87(2)(b) says, "I'm grabbing my ID, what's wrong with you?" PO Owens replies, "Nothing comes out of this vehicle," and exits the car. PO Owens and § 87(2)(b) both say, "Don't touch me," to each other, and PO Owens gets back in the driver's seat. Shortly thereafter, PO Owens exits the vehicle again. PO Feliz grabs § 87(2)(b) arms from behind. § 87(2)(b) appears to step forward, and PO Feliz appears to lose his hold on § 87(2)(b) right arm. PO Owens reaches for § 87(2)(b) left hand, and § 87(2)(b) is briefly seen swinging his right hand in PO Owens' direction, although he does not appear to make contact with PO Owens. Immediately thereafter, PO Owens appears to take hold of § 87(2)(b) right arm, and both fall to the ground. PO Owens' BWC appears to fall off and lands face down on the ground.

Det. Rodrigo prepared a TRI on PO Owens' behalf regarding the force he used against § 87(2)(b) [BR 15]. The TRI noted that § 87(2)(b) pushed and grappled with PO Owens, and that PO Owens used a forcible takedown and hand strikes against § 87(2)(b) in defense of himself and other members of service and to overcome resistance or aggressions. Photos attached to the TRI show bleeding in § 87(2)(b) ear and stitches above his eye.

PO Owens prepared a Medical Treatment of Prisoner report (MTPR) regarding this incident [BR 15]. The MTPR notes that § 87(2)(b) sustained lacerations to his eyebrow and ear. § 87(2)(b) he was given compliance strikes by the arresting officer in order to effect an arrest.

Det. Rodrigo testified that he was initially addressing the bystanders who were approaching the car when PO Owens and PO Feliz began struggling with § 87(2)(b) [BR 30]. At some point, Det. Rodrigo and PO Feliz switched places, so that Det. Rodrigo was assisting PO Owens with apprehending § 87(2)(b) and PO Feliz was keeping bystanders away from the vehicle. Det. Rodrigo took out his radio, requested additional officers at the location, and put his radio away, after which he and PO Owens took § 87(2)(b) to the ground. Det. Rodrigo did not recall the specific movements he and PO Owens used to take § 87(2)(b) to the ground. § 87(2)(b) landed on his front on the ground, and Det. Rodrigo laid his torso over § 87(2)(b) legs to prevent him from kicking and gain compliance. Det. Rodrigo's handcuffs had fallen off during the takedown, and § 87(2)(b) had kicked them away. Det. Rodrigo gained control of one of § 87(2)(b) arms and proceeded to look for his BWC, which had also fallen off during the struggle. Det. Rodrigo did not recall the specific actions that PO Owens took to gain compliance from § 87(2)(b) while they were on the ground. Det. Rodrigo's CCRB testimony was consistent with his statement to IAB and his memo book entry [BR 63, 65].

Det. Rodrigo's BWC footage shows officers already struggling on the ground with § 87(2)(b) when Det. Rodrigo approaches (IA 158, at 20:15 minutes) [BR 21]. Det. Rodrigo steps in to assist and holds § 87(2)(b) right arm with his left hand while PO Owens is on top of § 87(2)(b). PO Owens strikes § 87(2)(b) face two times with a closed fist. Shortly thereafter, Det. Rodrigo's BWC falls on the ground.

Det. Rodrigo prepared a TRI regarding the force he used against § 87(2)(b) which noted that § 87(2)(b) grappled and pushed officers and that Det. Rodrigo used a forcible takedown and gained control of § 87(2)(b) arm to handcuff him [BR 15]. Det. Rodrigo took these actions in defense of himself and other members of service and to overcome aggression and resistance.

Lt. Valad testified that PO Feliz and PO Owens' altercation with § 87(2)(b) began while Lt. Valad was addressing § 87(2)(b) and § 87(2)(b) on the passenger's side of the vehicle [BR 24]. Lt. Valad approached PO Feliz and PO Owens, simultaneously requesting assistance over the radio. Upon arriving at the driver's side of the vehicle, Lt. Valad observed PO Owens engaging in a physical struggle with § 87(2)(b) on the ground, with Det. Rodrigo assisting. Lt. Valad did not see how § 87(2)(b) and PO Owens ended up on the ground. § 87(2)(b) was face down on the ground at the time and had his hands pinned beneath him. PO Owens was on his right side and Det. Rodrigo was on his left. Det. Rodrigo was attempting to grab § 87(2)(b) left arm. Lt. Valad did not see precisely what PO Owens was doing but noted that he was trying to pin § 87(2)(b) hands. PO Owens struck § 87(2)(b) with a closed fist on the side of his head two times. Lt. Valad stopped PO Owens from striking § 87(2)(b) a third time and instructed him to take § 87(2)(b) hands. Lt. Valad noted that § 87(2)(b) became compliant after the second time PO Owens struck him. Lt. Valad's BWC footage briefly shows officers struggling on the ground with § 87(2)(b) but it is unclear what specific actions they are taking (IA 158, at 21:44 minutes) [BR 21]. Lt. Valad's CCRB testimony was consistent with his statement to IAB [BR 65].

Video of the incident was posted to Instagram by user § 87(2)(b) and appears to take place after PO Owens entered § 87(2)(b) vehicle to transport it to the 32nd Precinct stationhouse [BR 17]. This occurred simultaneously with Lt. Valad's interactions with § 87(2)(b) and § 87(2)(b) on the passenger's side of the vehicle. In the video, PO Owens exits the driver's seat of § 87(2)(b) vehicle. § 87(2)(b) begins to walk in the direction of the open car door, but PO Feliz blocks him. PO Feliz and § 87(2)(b) appear to argue (IA 97, at 34 seconds). Another Instagram video posted by the same user resumes at the moment the previous video ends [BR 18]. The video shows officers struggling with § 87(2)(b) on the driver's side of the vehicle. § 87(2)(b) is seen sitting on the ground with PO Owens behind him. The video did not capture how § 87(2)(b) got the ground. PO Owens has his hands on § 87(2)(b) arms and tries to pull them behind § 87(2)(b) back. There appears to be some delay in doing so, although it is unclear what § 87(2)(b) is doing

or why there is difficulty. § 87(2)(b) appears to attempt to stand up (IA 98, at 10 seconds). Det. Rodrigo steps in to assist PO Owens and obstructs the view of the specific actions PO Owens and § 87(2)(b) are taking.

Excerpts of social media videos of the incident were included in a video posted on § 87(2)(b). The video shows § 87(2)(b) on the ground while PO Owens kneels over him. PO Owens strikes § 87(2)(b) on the head three times. Another officer appears to hold § 87(2)(b) right arm. § 87(2)(b) left arm is underneath his face with PO Owens' hand on his wrist. PO Owens then begins to move § 87(2)(b) arm behind his back (IA 14, at 5 seconds).

An excerpt from a social media video posted § 87(2)(b) article shows more of the same clip shown in § 87(2)(b). After PO Owens begins moving § 87(2)(b) arm behind his back, officers are heard telling § 87(2)(b) "Stop resisting," (IA 53, at 21 seconds).

§ 87(2)(b) was charged with the following offenses: resisting arrest, obstruction of government administration, suspended vehicle registration, operating a motor vehicle without insurance, operating a motor vehicle without a license, and failure to signal [BR 15]. The narrative of the arrest report notes that the arresting officer, PO Owens, attempted to remove the vehicle from a public street when § 87(2)(b) reached into the vehicle several times and attempted to push past PO Owens to get to the vehicle, preventing PO Owens from carrying out his lawful duty. The narrative also notes that § 87(2)(b) resisted lawful arrest by pinning his arms under his body and pulling away from PO Owens as he attempted to gain control of his arms. The arrest report does not list or mention any of the force used during the arrest. As per the arrest report, § 87(2)(b) was 20 years old, 5'9" tall, and weighed 160 pounds at the time of the incident. The Command Log from the 32nd Precinct notes that § 87(2)(b) had lacerations when he was brought before the command desk [BR 61].

As per PO Owens self-reported pedigree information at the time of his interview, PO Owens was 29 years old at the time of the incident, is 6'0" tall, and weighs 185 pounds [BR 22].

As per PO Feliz's self-reported pedigree information at the time of his interview, PO Feliz was 23 years old at the time of the incident, is 5'2" tall, and weighs 145 pounds [BR 31].

As per Det. Rodrigo's self-reported pedigree information at the time of his interview, Det. Rodrigo was 46 years old at the time of the incident, is 5'10" tall, and weighs 207 pounds [BR 32]. NYPD Patrol Guide Procedure 200-02 notes that officers must respect the dignity of each individual and render services with courtesy and civility [BR 37].

NYPD Disciplinary case #2017-17276 notes that language which would ordinarily be inappropriate in dealing with civilians may be excused in the course of a violent confrontation [BR 50]. NYPD Disciplinary case #2015-15012 notes that discourteous language may be used by officers in the context of dynamic situations in which the officer is attempting to gain control or compliance from civilians [BR 51].

According to NYPD Patrol Guide Procedure 221-02, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances [BR 35]. According to Patrol Guide Procedure 221-01, the following factors should be taken into consideration when determining whether the use of force is reasonable: nature and severity of the crime; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, MOS, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to MOS; size, age, and condition of the subject in comparison to MOS; subject's violent history, if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant or narcotic affecting pain tolerance or increasing the likelihood of violence [BR 35]. Patrol Guide Procedure 221-03 regarding reporting of use of force and injuries notes that physical force such as

hand strikes or forcible takedowns are a level one use of force [BR 36].

IAB exonerated the physical force allegations [BR 65].

§ 87(2)(b) had already reached into a vehicle that was being taken into police custody and failed to comply with orders to step away from his vehicle at the time that PO Feliz told § 87(2)(b) to “get the fuck out of here.” Additionally, the crowd gathered nearby was growing increasingly agitated and yelling at officers on scene, while Lt. Valad was simultaneously attempting to stop § 87(2)(b) from entering the vehicle on the passenger’s side. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **exonerated**.

§ 87(2)(g)
§ 87(2)(b) is seen in PO Owens’ BWC video stepping away from PO Feliz and PO Owens and swinging his arm in PO Owens’ direction prior to the takedown. § 87(2)(b) is seven inches taller and 15 pounds heavier than PO Feliz, who is three years older. Both PO Owens and Det. Rodrigo are taller, older, and heavier than § 87(2)(b) § 87(2)(g)

§ 87(2)(g)
§ 87(2)(b) video shows that § 87(2)(b) left arm is held under his body and remains so after PO Owens strikes him a second time [BR 02] (IA 14, at 5 seconds). Furthermore, PO Owens does ultimately strike § 87(2)(b) a third time, after which he gains control of § 87(2)(b) left arm, and Lt. Valad does not stop him. § 87(2)(g)

§ 87(2)(b) only PO Owens, Lt. Valad, PO Feliz, and Det. Rodrigo were on scene at the time, and the gathering crowd outnumbered the officers on scene at the time. § 87(2)(b) was also actively resisting arrest when PO Feliz and PO Owens initially try to apprehend him. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations F and G** be closed as **exonerated**.

Social media video shows that § 87(2)(b) engaged in a physical struggle when he was first taken to the ground. § 87(2)(g)

§ 87(2)(b) video, § 87(2)(b) was seen with his left arm under his head. Furthermore, § 87(2)(b) had actively resisted being handcuffed before he was taken to the ground. Additional officers had yet to arrive on scene, and the four officers there were outnumbered by the crowd which had begun to approach and had thrown several objects, including a bicycle, at officers. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation H** be closed as **exonerated**.

Although Det. Rodrigo noted in his TRI that he used a forcible takedown on § 87(2)(b) it is clear from video that only PO Owens was involved in § 87(2)(b) falling or otherwise being taken to the ground. As such, the extent of Det. Rodrigo’s involvement in physically subduing § 87(2)(b)

§ 87(2)(b) was to lay his body over § 87(2)(b) legs and gain control of his arm. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) It
is therefore recommended that **Allegation I** be closed as **exonerated**.

Allegation (J) Force: At 5th Avenue and West 130th Street in Manhattan. Police Officer Michael Feliz used physical force against § 87(2)(b)
Allegation (K) Force: At 5th Avenue and West 130th Street in Manhattan. Police Officer Michael Feliz used physical force against § 87(2)(b)

It is undisputed that PO Feliz pushed § 87(2)(b) and § 87(2)(b) several times while officers effected § 87(2)(b) arrest. Neither § 87(2)(b) nor § 87(2)(b) testified to PO Feliz using any force against them [BR 06, 52]. Although § 87(2)(b) did not testify to PO Feliz using any force against her, she reported to IAB that she tried to intervene with § 87(2)(b) arrest in order to record video of the incident [BR 65]. These allegations are being pleaded because they were captured on BWC video.

In PO Feliz's BWC footage, after PO Owens takes § 87(2)(b) to the ground, PO Feliz walks away from § 87(2)(b) and PO Owens (IA 158, between 13:55 and 15:05 minutes) [BR 21]. PO Feliz interacts with § 87(2)(b) telling her to back up and putting his hand out in front of her. PO Feliz appears to be facing away from § 87(2)(b) arrest, which is being effected behind him. § 87(2)(b) moves forward, and PO Feliz holds her back, although it is unclear exactly what physical contact he has with her (14:00 minutes). § 87(2)(b) approaches PO Feliz, and PO Feliz puts both hands on § 87(2)(b) chest and pushes him back (14:15 minutes). Both § 87(2)(b) and § 87(2)(b) appear to reach within five feet of § 87(2)(b). Additional civilians are also seen standing closely behind § 87(2)(b) and § 87(2)(b) (14:18 minutes). Immediately thereafter, § 87(2)(b) again attempts to approach § 87(2)(b) and PO Feliz holds her back with his right hand on her underarm and chest area (14:20 minutes). § 87(2)(b) approaches as well, and PO Feliz briefly pushes § 87(2)(b) again with his left hand (14:25 minutes). § 87(2)(b) then approaches again, and PO Feliz pushes her backwards, although it is unclear how much force is exerted (14:29 minutes). § 87(2)(b) approaches again, and PO Feliz grabs her right arm and holds her back (14:41 minutes). It is unclear whether PO Feliz pushes her at that time. § 87(2)(b) approaches again, and PO Feliz then grabs § 87(2)(b) left arm and puts his hands on his chest to push him back slightly, but without enough force to cause him to stumble (14:45 minutes). § 87(2)(b) approaches again, and PO Feliz puts his hands on her arms to hold her back but does not appear to push (14:58 minutes).

PO Feliz testified that after he switched places with Det. Rodrigo, he stood approximately five feet away from § 87(2)(b) and PO Owens [BR 28]. Approximately five to six individuals from the crowd had come closer and were attempting to approach the area where § 87(2)(b) was struggling with PO Owens and Det. Rodrigo on the ground. § 87(2)(b) and § 87(2)(b) were among the individuals approaching him, and both of them rushed towards him, attempting to push past PO Feliz and ultimately coming within two feet of § 87(2)(b). PO Feliz, in turn, pushed both § 87(2)(b) and § 87(2)(b) away several times, as they repeatedly attempted to get past PO Feliz to reach § 87(2)(b). PO Feliz also testified that he saw objects being thrown overhead while he attempted to keep bystanders away from PO Owens and § 87(2)(b).

PO Feliz prepared TRIs for his use of force against § 87(2)(b) and § 87(2)(b) which noted that he used pushing and shoving in defense of himself and other members of service [BR 15]. Both TRIs also note that § 87(2)(b) and § 87(2)(b) pushed or shoved PO Feliz.

As previously noted, § 87(2)(b) was arrested during this incident for obstruction of government administration [BR 15]. The arrest report noted that § 87(2)(b) resisted lawful orders

As previously noted, § 87(2)(b) was 61 years old at the time of the incident, is 6'2" tall, and weighs 220 pounds [BR 52].

According to NYPD Patrol Guide Procedure 221-02, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances [BR 35]. According to Patrol Guide Procedure 221-01, the following factors should be taken into consideration when determining whether the use of force is reasonable: nature and severity of the crime; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, MOS, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to MOS; size, age, and condition of the subject in comparison to MOS; subject's violent history, if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant or narcotic affecting pain tolerance or increasing the likelihood of violence [BR 35]. Patrol Guide Procedure 221-03 regarding reporting of use of force and injuries notes that physical force such as hand strikes or forcible takedowns are a level one use of force [BR 36].

Although obstruction of government administration is a misdemeanor offense, PO Feliz attempted to block § 87(2)(b) path before resorting to pushing her, and § 87(2)(b) continued to advance. § 87(2)(b) was not arrested but ultimately took the same actions that § 87(2)(b) did. PO Feliz was singlehandedly keeping § 87(2)(b) and § 87(2)(b) away from officers effecting § 87(2)(b) arrest. PO Feliz was also younger, shorter, and significantly less heavy than both § 87(2)(b) and § 87(2)(b). As previously noted, a large crowd of bystanders had gathered at the scene and drastically outnumbered the officers on scene at the time. Bystanders threw objects, including a bicycle, at officers. § 87(2)(g)

It is therefore recommended that Allegations J and K be closed as exonerated.

Allegation (M) Force: At 5th Avenue and West 130th Street in Manhattan. Lieutenant Javad Valad used physical force against § 87(2)(b)

Allegation (O) Abuse of Authority: At 5th Avenue and West 130th Street in Manhattan.
Lieutenant Javad Valad threatened § 87(2)(b) with the use of force.

Allegation (P) Abuse of Authority: At 5th Avenue and West 130th Street in Manhattan.
Lieutenant Javad Valad threatened individuals with the use of force.

It is undisputed that Lt. Valad pushed § 87(2)(b) and § 87(2)(b) again after officers

began arresting § 87(2)(b). It is also undisputed that Lt. Valad pointed his taser at several bystanders while officers effected § 87(2)(b) arrest. Allegations M and O are being pleaded because it was captured on BWC.

§ 87(2)(b) testified that he was standing behind Lt. Valad when PO Owens took § 87(2)(b) to the ground [BR 52]. Lt. Valad then pushed him a second time. § 87(2)(b) did not testify to Lt. Valad pushing § 87(2)(b). Lt. Valad then pointed a taser at him, but that he did not see Lt. Valad point the taser at anyone else. § 87(2)(b) CCRB testimony was consistent with his statement to IAB [BR 65].

§ 87(2)(b) testified that while PO Owens and Det. Rodrigo were struggling with § 87(2)(b) Lt. Valad pulled out his taser and began waving it toward the crowd, yelling at them to back up [BR 06]. She did not testify about Lt. Valad pointing the taser at her, nor did she testify to Lt. Valad pushing her or § 87(2)(b).

§ 87(2)(b) did not testify to Lt. Valad pointing his taser at anyone on scene, nor did he testify to seeing Lt. Valad pushing § 87(2)(b) or § 87(2)(b) [BR 05].

Lt. Valad testified that several of the bystanders had begun to approach § 87(2)(b) vehicle [BR 24]. Lt. Valad told the bystanders, § 87(2)(b) and § 87(2)(b) to step back 10 to 15 times. § 87(2)(b) and § 87(2)(b) continued to approach § 87(2)(b) as officers effected his arrest, and Lt. Valad pushed both § 87(2)(b) and § 87(2)(b) to keep them from approaching § 87(2)(b). The bystanders also did not comply with orders to step back, and Lt. Valad took out his taser and pointed it at the crowd while telling them to step back. Lt. Valad noted that he did not intend to deploy the taser and only used it as a tool and as a show of force to keep the crowd back. Lt. Valad noted that, throughout the incident, he heard bottles breaking and saw several objects, including a bicycle, being thrown overhead. PO Feliz also testified that he saw objects being thrown overhead while he attempted to keep bystanders away from PO Owens and § 87(2)(b). Lt. Valad's CCRB testimony was consistent with his statement to IAB [BR 65]. As previously noted, Lt. Valad stated that he did not prepare a TRI regarding his interactions with § 87(2)(b) and § 87(2)(b) as he consulted with the NYPD Legal Department and was informed that he did not need to do so.

§ 87(2)(b) video, Lt. Valad removes his taser from the holster shortly before he pushes § 87(2)(b) and § 87(2)(b) (IA 14 at 0:43 seconds) [BR 02]. As previously noted, in the same video, a bicycle is seen being thrown at officers while § 87(2)(b) is on the ground with PO Owens (IA 14 at 0:10 seconds) [BR 02].

Lt. Valad's BWC footage shows that while PO Owens and Det. Rodrigo are on the ground with § 87(2)(b) both § 87(2)(b) and § 87(2)(b) attempt to approach § 87(2)(b) from the rear of § 87(2)(b) vehicle, but PO Feliz prevents them from doing so (IA 158, beginning at 21:44 minutes) [BR 21]. The footage shows Lt. Valad briefly pointing his taser in § 87(2)(b) direction, before he turns around and points the taser at several bystanders who are standing near the front of § 87(2)(b) vehicle. Lt. Valad continues to hold his CEW when he gestures for § 87(2)(b) and § 87(2)(b) to move back away from § 87(2)(b). Lt. Valad again appears to turn around and point his taser at bystanders again, then turn around again and point the taser at § 87(2)(b).

As previously noted, PO Feliz's BWC footage shows § 87(2)(b) and § 87(2)(b) attempting several times to approach § 87(2)(b) as he was being arrested, necessitating PO Feliz to use force to keep them from interfering with the arrest [BR 21].

According to NYPD Patrol Guide Procedure 221-02, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances [BR 35]. According to Patrol Guide Procedure 221-01, the following factors should be taken into consideration when determining whether the use of force is reasonable: nature and severity of the crime; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject,

MOS, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to MOS; size, age, and condition of the subject in comparison to MOS; subject's violent history, if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant or narcotic affecting pain tolerance or increasing the likelihood of violence [BR 35]. Patrol Guide Procedure 221-03 regarding reporting of use of force and injuries notes that physical force such as hand strikes or forcible takedowns are a level one use of force [BR 36].

NYPD Patrol Guide procedure 221-08 outlines instructions for the proper use of a taser, which may be used to subdue aggressive suspects and is classified as a significant intermediate use of force [BR 38]. A taser should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. However, Patrol Guide procedure also notes that a laser warning—pointing and placing the laser dot of an activated taser on a subject in order to attempt to achieve voluntary compliance—is allowed. The laser warning should, when feasible, be accompanied by a verbal warning to the intended subject.

§ 87(2)(b) was not arrested but, as previously noted, he repeatedly approached § 87(2)(b) as officers were effecting his arrest. Lt. Valad and PO Feliz were both addressing both § 87(2)(b) and § 87(2)(b) and the approaching crowd by themselves simultaneously. Lt. Valad is 25 years younger, one inch taller, and 60 pounds heavier than § 87(2)(b) § 87(2)(g) as seen in Lt. Valad's BWC footage, a large crowd of bystanders had gathered at the scene and drastically outnumbered the officers on scene at the time. § 87(2)(g)

It is therefore recommended that **Allegations L and M** be closed as **exonerated**.

As noted within Allegations J and K, § 87(2)(b) and § 87(2)(b) repeatedly approached § 87(2)(b) as officers arrested him despite PO Feliz's and Lt. Valad's repeated attempts to keep them away from the scene. § 87(2)(g)

It is therefore recommended that **Allegations N and O** be closed as **exonerated**.

§ 87(2)(g) In Lt. Valad's BWC video and in PO Feliz's video, several individuals are seen standing closely behind § 87(2)(b) and § 87(2)(b) who approach the scene of § 87(2)(b) arrest. It is unclear whether bystanders had begun to throw objects at officers at the time that Lt. Valad points his taser at bystanders. § 87(2)(g)

It is therefore recommended that **Allegation P** be closed as **exonerated**.

Allegation (O) Force: At 5th Avenue and West 130th Street in Manhattan. Captain Neil Zuber used physical force against § 87(2)(b)
Allegation (R) Abuse of Authority: At 5th Avenue and West 130th Street in Manhattan. Captain Neil Zuber arrested § 87(2)(b)

It is undisputed that after § 87(2)(b) and § 87(2)(b) were arrested and taken to the stationhouse, officers remained on scene to remove § 87(2)(b) vehicle from the location. It is also undisputed that § 87(2)(b) made a statement to Cpt. Zuber that included the phrase, “knock you out.” Finally, it is undisputed that Cpt. Zuber took § 87(2)(b) to the ground before § 87(2)(b) was placed under arrest. Allegation Q is pleaded against Cpt. Zuber because video shows that he initiated the takedown, with other officers only stepping in to assist him. Allegation R is being pleaded against Cpt. Zuber because he initiated § 87(2)(b) arrest.

§ 87(2)(b) testified that, while § 87(2)(b) and § 87(2)(b) were being arrested, a friend of § 87(2)(b) stood by and recorded on his phone [BR 52]. After their arrests, an officer handcuffed § 87(2)(b) friend, put him on the ground, and put his foot on his back. § 87(2)(b) did not know the name of § 87(2)(b) friend. However, given that § 87(2)(b) was the only other person arrested on scene aside from § 87(2)(b) and § 87(2)(b) the investigation is attributing § 87(2)(b) testimony to § 87(2)(b) arrest.

§ 87(2)(b) declined to provide a statement to the CCRB [BR 19].

§ 87(2)(b) provided a video which she stated was recorded by someone in the neighborhood, although she did not recall the person’s name [BR 14]. The video shows a crowd of people gathered around a sidewalk. In the video, Cpt. Zuber, wearing a white vest, tells bystanders to “back up” several times (IA 56, at 0:00 seconds) [BR 14]. One individual in a white t-shirt and black pants, identified as § 87(2)(b) attempts to sidestep around Cpt. Zuber after Cpt. Zuber tells him to step back. § 87(2)(b) makes an inaudible statement, to which Cpt. Zuber says, “Or what?” § 87(2)(b) is heard saying the phrase, “knock you out,” but the rest of the statement is inaudible (IA 56, at 17 seconds). Cpt. Zuber immediately approaches § 87(2)(b) and appears to try to grab him. Although the view is partially obstructed by other bystanders, § 87(2)(b) appears to raise his arm and attempt to pull it away from Cpt. Zuber. There appears to be a short struggle, and approximately eight to 10 officers appear to assist Cpt. Zuber in taking § 87(2)(b) to the ground.

In PO Gutierrez’ BWC footage, approximately 10-15 officers are on scene, and the crowd of bystanders has grown, appearing to include 15-20 people (IA 158, 0:00-1:30 minutes) [BR 21]. Cpt. Zuber speaks to § 87(2)(b) to the left of the frame some distance away from PO Gutierrez (IA 158, at 1:32 minutes) [BR 21]. § 87(2)(b) also takes several steps towards § 87(2)(b) vehicle, and Cpt. Zuber moves to block his path. Cpt. Zuber walks behind § 87(2)(b) and grabs his right arm, then struggles with § 87(2)(b) and attempts a takedown. Several other officers step in to assist. § 87(2)(b) falls to the ground shortly thereafter, and PO Gutierrez appears to grab the back of his shirt. It is unclear how § 87(2)(b) falls to the ground. Cpt. Zuber then places a hand on the back of § 87(2)(b) neck to push his face towards the ground and appears to place one knee on § 87(2)(b) shoulder. Several officers hold § 87(2)(b) arms and hands while he is handcuffed. An unidentified male officer is heard saying, “You do not tell a cop you’re going to knock them out, do you understand me?” (IA 158, at 2:05 minutes) [BR 21].

Cpt. Zuber testified that when he arrived on scene, officers had already handcuffed § 87(2)(b) [BR 29]. Cpt. Zuber immediately assisted with crowd control, as the civilians on scene outnumbered the officers. Cpt. Zuber instructed officers to establish a perimeter around § 87(2)(b) vehicle to prevent bystanders from interacting with it. As officers established the perimeter, one individual, identified as § 87(2)(b) repeatedly moved back and forth between § 87(2)(b) vehicle and the sidewalk. Cpt. Zuber told § 87(2)(b) several times to move away from the vehicle

and keep his distance from the officers. § 87(2)(b) repeatedly attempted to move past Cpt. Zuber, who instructed him to step back. After several attempts to move past Cpt. Zuber, § 87(2)(b) stated, “How about I knock you out?” which Cpt. Zuber believed was a threat to physically harm him. Cpt. Zuber made the decision to arrest § 87(2)(b) and grabbed him, although he did not recall where on § 87(2)(b) person he grabbed him. § 87(2)(b) moved his arm and attempted to pull away from Cpt. Zuber, who then took § 87(2)(b) to the ground. Cpt. Zuber did not recall specifically how he took § 87(2)(b) to the ground, how § 87(2)(b) landed on the ground, or whether Cpt. Zuber also went to the ground with him. Several officers stepped in to assist Cpt. Zuber, and another officer placed § 87(2)(b) in handcuffs, although Cpt. Zuber did not recall who did so. Other officers then transported § 87(2)(b) away from the scene to the 32nd Precinct stationhouse and processed his arrest. Cpt. Zuber did not recall whether he provided any information to the arresting officer regarding § 87(2)(b) behavior or his threat, but he believed that he may have done so upon his return to the stationhouse. Cpt. Zuber was unaware of whether § 87(2)(b) was issued any charges regarding his threat to harm Cpt. Zuber. Cpt. Zuber did not prepare a TRI regarding this use of force. He testified that officers of his rank would not prepare a TRI and that a higher-ranking officer would normally prepare it on his behalf. Cpt. Zuber did not recall whether he informed any higher-ranking officers of the incident so that they could prepare the TRI but believed that he did so.

Per Cpt. Zuber’s MOS photo, Cpt. Zuber was 42 years old at the time of incident, is 6’2” tall, and weighs 210 pounds [BR 34].

The investigation was unable to obtain pedigree information for § 87(2)(b) as he declined to give a statement or any personal information, and his arrest from the incident date was sealed. However, in PO Gutierrez’ BWC footage, § 87(2)(b) appears to be inches shorter than Cpt. Zuber with a slim build.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

According to NYPD Patrol Guide Procedure 221-02, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances [BR 35]. According to Patrol Guide Procedure 221-01, the following factors should be taken into consideration when determining whether the use of force is reasonable: nature and severity of the crime; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, MOS, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to MOS; size, age, and condition of the subject in comparison to MOS; subject’s violent history, if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant or narcotic affecting pain tolerance or increasing the likelihood of violence [BR 35]. Patrol Guide Procedure 221-03 regarding reporting of use of force and injuries notes that physical force such as hand strikes or forcible takedowns are a level one use of force [BR 36].

According to NYPD Patrol Guide Procedure 208-01, an officer may arrest a person without a warrant for an offence when reasonable cause exists to believe that offence was committed in his/her presence [BR 71]. Per New York State Penal Law 240.20, a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof : he engages in fighting or in violent, tumultuous or threatening behavior and congregates with other persons in a public place and refuses to comply with a lawful order of the

police to disperse among other aspects [BR 72]. Per New York State Penal Law 195.05, a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act and other actions [BR 73].

According to NYPD Patrol Guide Procedure 200-02, “the mission of the New York City Police Department is to enhance the quality of life in New York City by working in partnership with the community to enforce the law, preserve peace, reduce fear, and maintain order. The Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect, while efficiently rendering police services and enforcing the laws impartially, by fighting crime both through deterrence and the relentless pursuit of criminals [BR 70]” NYPD pledges to “maintain a higher standard of integrity than is generally expected of others because so much is expected of [them].”

§ 87(2)(g)

§ 87(2)(b) is seen attempting to step around Cpt. Zuber at least once after being instructed to step back. § 87(2)(g)

Regardless of the above facts, the video provided by § 87(2)(b) shows that, when Cpt. Zuber attempted to grab § 87(2)(b) arm to place him under arrest, § 87(2)(b) raised his arm and attempted to pull away from Cpt. Zuber. § 87(2)(g)

. It is therefore recommended that **Allegation Q** be closed as **exonerated**.

§ 87(2)(g)

it recommended that

Allegation R be substantiated.

Allegation (S) Discourtesy: At the 32nd Precinct stationhouse, an officer acted discourteously toward § 87(2)(b)

Allegation (T) Discourtesy: At the 32nd Precinct stationhouse, an officer spoke discourteously to § 87(2)(b)

It is disputed whether any officer threw a bottle at § 87(2)(b) and told him, “I don’t give afuck where you spit,” while § 87(2)(b) was lodged in the holding cells at the 32nd Precinct stationhouse.

§ 87(2)(b) testified that while she and § 87(2)(b) were lodged in the holding cells at the 32nd Precinct stationhouse, § 87(2)(b) was bleeding from his mouth and asked nearby officers for a garbage can to spit into [BR 06]. One of the officers threw a bottle at § 87(2)(b) and told him to spit in that bottle. § 87(2)(b) asked how he was expected to spit in the bottle, given that he had a lot of blood and spit coming out of his mouth. The officer said, “I don’t give a fuck if you spit on the floor, wherever you spit at, just spit.” § 87(2)(b) did not recall which officer took these actions but noted that it was either PO Feliz or PO Owens. § 87(2)(b) did not note this allegation in her statement to IAB [62]. § 87(2)(b) did not allege that any officers spoke discourteously to him or threw any bottles at him at the stationhouse.

PO Gordon’s BWC footage shows him completing § 87(2)(b) arrest processing (IA 158, beginning at 9:38 minutes) [BR 21]. PO Gordon’s BWC footage ends shortly after § 87(2)(b) is placed inside of the holding cell. At no point during the video does an officer throw a bottle at § 87(2)(b) or say, “I don’t give a fuck where you spit.” Only PO Gordon’s BWC footage shows § 87(2)(b) in the holding cell.

PO Gordon and PO Feliz both denied throwing a bottle at § 87(2)(b) and saying, “I don’t give a fuck where you spit,” or using any other profanity towards § 87(2)(b) in the holding cell area of the stationhouse [BR 27, 28]. PO Owens testified that he had no interaction with § 87(2)(b) at the stationhouse and did not hear any conversation between § 87(2)(b) and other officers in the holding cell area [BR 23].

The investigation did not obtain stationhouse footage of § 87(2)(b) time in the holding cell, as § 87(2)(b) made these allegations over 30 days after the incident, when footage had been deleted.

§ 87(2)(b) was unsure of whether PO Owens or PO Feliz threw the bottle and used profanity towards § 87(2)(b) despite the fact that PO Owens and PO Feliz have very different pedigrees.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

It is therefore recommended that **Allegations S and T** be closed as **unfounded**.

§ 87(2)(g), § 87(4-b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been parties [BR 55].
- It is unknown whether this is the first complaint to which § 87(2)(b) has been a party, as multiple CCRB complaints share this name and § 87(2)(b) refused to provide further information to identify himself [BR 56].
- Det. Rodrigo has been a member of service for 19 years and has been the subject of 13 other CCRB cases with 28 allegations, none of which were substantiated.
 - Det. Rodrigo's CCRB history includes seven previous physical force allegations.
- Lt. Valad has been a member of service for 16 years and has been a subject of 17 other CCRB cases with 39 allegations, none of which were substantiated.
 - § 87(2)(g)
- PO Feliz has been a member of service for two years and has been a subject in two other CCRB cases with two allegations, which are both still pending investigation.

- PO Owens has been a member of service for four years and has been a subject of one other CCRB case with one allegation, which was not substantiated.
- Cpt. Zuber has been a member of service for 18 years and has been a subject in 14 other CCRB cases with 37 allegations, two of which were substantiated.
 - Case 201303672 involved a substantiated search of person allegation against Cpt. Zuber. The Board recommended charges, and the NYPD imposed no penalty because the statute of limitations expired while the case was with the Administrative Prosecution Unit.
 - Case 201509988 involved a substantiated retaliatory arrest allegation. The Board recommended Command Discipline A, and the NYPD imposed no penalty.
 - Cpt. Zuber's CCRB history includes 10 previous physical force allegations.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York regarding this incident on an unknown date [BR 04]. § 87(2)(b) and counsel were seeking one million dollars in redress for "false arrest, false imprisonment, assault, battery, excessive force, negligent hiring, and negligent supervision," § 87(2)(b)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 3

Investigator: Magdalena Azmitia
Signature

Inv. Magdalena Azmitia
Print Title & Name

May 11, 2021
Date

Squad Leader: Olga Golub
Signature

SL Olga Golub
Print Title & Name

06/28/2021
Date

Reviewer: _____
Signature

Print Title & Name

Date

CCRB Case # 201906036

